IPA
AN FORAS RIARACHÁIN
INSTITUTE OF PUBLIC
ADMINISTRATION

Certificate in Local Government Studies
(Accredited by NUI)

LESSON 5
The Role of the Chief Executive & the Elected Member & Procedures at Council Meetings

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Learning Objectives

By the end of this lesson, you should be able to:

- identify the role and functions of the county/city chief executive
- give an account of the environment in which the management system operates
- outline the relationship between the chief executive and the elected members
- offer an account of the policy and representational roles of elected members (often referred to as local Councillors)
- list the powers and functions of the elected members
- show how local democracy works through committees and public meetings.

5.0 INTRODUCTION AND OVERVIEW

Local authorities operate in an increasingly dynamic environment, one which is impacted by political, legal, media, management and financial challenges and where public expectations have reached unprecedented levels. The critical challenge for management is to ensure that the organisation, its resources and policies lead change and are appropriate to the needs of the society it serves. Although it can be contested (see below), one point of view is that within the local government system there is a reasonable balance whereby policy is the prime responsibility of elected public representatives, with the chief executive and staff responsible for the execution of policy and the efficient and effective running of the organisation. This relationship between the elected council and the chief executive and staff, that has evolved over many decades, will change with the proposed creation of a directly elected mayor in some areas. The first area to have a directly elected mayor is Limerick from 2024.

In the complex world in which we live, and in particular in that of local government, the chief executive cannot and does not act in isolation. The chief executive must display considerable leadership skills and must foster team-working which is essential in the local government environment. This leadership role applies both within the council and interacting with various outside agencies operating locally. In the final analysis, a team approach includes elected members, management, staff and the community working together in partnership to achieve a shared vision and common goals designed to improve the quality of life for all citizens. The wider role for local government was set out in *Putting People First*, and it was an ambitious vision. It saw local government reaching beyond its core functional remit to promote the wellbeing of the locality and having a responsibility for place as well as services. This is termed 'local governance' or network governance, where the council acts and influences through networks with a wide variety of single-purpose state agencies, public funded bodies, community and voluntary groups. This is a much more complex undertaking than the traditional roles of local government and extends, in some instances, to competences outside the local government sphere.

Elected members play an important representative role. In recent years, a democratic deficit is perceived to have arisen in democratic societies (e.g. the European Union),

something manifest in reduced voter turnout at election time for European, national and local elections. This is compounded by the perception in some quarters that local authorities are ineffective or unwilling to perform their functions on behalf of citizens. Flowing from this perception, in the recent past the local government system has practically been by-passed by alternative local-government arrangements.

Concerns at this apparent fragmentation gave rise to the County/City Development Boards with a specific remit to integrate the local government and local development systems. This initiative, while welcome, was seen as yielding mixed results (as the powers of the Boards were inherently limited), so the Boards were abolished in 2014 and replaced by Local Community Development Committees (LCDCs). The LCDCs have stronger powers.

The LCDC are partnerships involving local authorities, other public agencies and community representatives. Strategic Policy Committees (SPCs) comprise 1/3 external membership and the LCDCs also have majority external membership. These external membership balances are designed to ensure that the knowledge and experience available in local communities is availed of in the consideration and discussion of objectives and policies – initially at the SPC and ultimately at meetings of the full Council. Policy and decision making is more inclusive at the local level and thus better grounded.

Lack of participation in the political system generally is evidenced in recent years by the lower turnout of voters at local government elections. This is a very important issue. Unless it is addressed satisfactorily, this issue raises serious questions as to whether or not representative democracy really does adequately reflect the views of citizens. Voter turnout is affected by a variety of different decisions made by individual voters, along with a range of broader socio-economic and demographic factors that impact on different areas. In considering the role of elected representatives, weight must also be given to the overall role which local government is expected to play in our society in the 21st century.

Ultimately, local government is about the people being served, the impact which local authority activities make in their lives and the fostering of organisational arrangements which will facilitate participation by citizens. You should keep this purpose firmly in mind when studying the remainder of this lesson.

Local councillors are elected by the citizens of a particular electoral area. They are required to represent local people and to exercise power on their behalf within the overall law of the land. This is an important principle for local democracy. Unless those who are democratically elected locally can exercise power, local democracy in its fullest meaning does not exist.

It has been felt for some time that councillors in the Irish local government system do *not* fully meet this requirement of local democracy and that a "democratic deficit" exists. This democratic deficit can be attributed to the following:

- Too many local decisions are the responsibility of central government departments and are outside the control of local government. It has long been argued that Ireland is over-centralised. A core justification for local government lies with

political values and, in particular, the promotion of liberty by the dispersal of power from the centre to the local level. A strong trend in developed and developing economies is decentralisation. Most centrally funded initiatives implemented by local authorities in Ireland come with bounded discretion.

- Lack of local funding or discretionary finance for worthwhile local projects results in disillusionment amongst councillors as a result of their inability to influence change. However it could also be pointed out that for many local authorities a greater proportion of revenue income in the annual budget is now raised at the local level. There is now some discretion for local councillors to increases taxes (such as the local property tax and commercial rates) as well as charges. Unfortunately in many local authorities these powers are not availed of despite advice from chief executives.
- Most day-to-day decisions are taken by non-elected staff, with the suggestion that the balance between the powers of the county or city chief executives and councillors weighted in favour of the chief executives.
- Councillors in many instances are overwhelmed with the legal and other complexities of major policy issues and lack the information and training needed to fulfil the policy role envisaged for them. Students should note that the legal onus placed on largely part-time local councillors to adopt policies, levy taxes and so on far outweighs the comparable responsibilities of national politicians, most of whom are full-time.
- The constant involvement of national politicians in local affairs can diminish the importance of the local councillor's role.
- Almost all centrally funded non-elected bodies operate at local level without any reporting or responsibilities to the locally elected councillors. These bodies report to their central government department, and their decisions (which can bear heavily at the local level) have no local governance element. There are indications that the centralisation trend may be changing with the announcement that the HSE is to be reorganised into a more regional structure as part of implementing Sláintecare and improving our health service.
- There has been a transfer of power from the elected councillors to the county or city chief executive in relation to difficult policy areas such as adoption/amendment of waste management plans and Traveller accommodation plans. Local authorities are tasked with delivering very important services and infrastructure. Some of these are classed as the 'wicked issues,' in that there is no easy or right decision that meets everyone's needs or expectations. Many councillors privately welcomed being relieved of these difficult issues.

All of the above combine to result in reduced relevance, negative public perceptions, diminished morale and a decline in the prestige and perceived importance of local government and local politics for local people and businesses. Ireland has become a wealthy and highly educated country, and most citizens' dependence on the state is lessened as a result. Technology has made access to services much easier. The Ombudsman, Freedom of Information, GDPR, increased role for the EU and so on have re-calibrated the relationship between public sector organisations and citizens. The role of all public representatives is changing. In this wider context it is not surprising, therefore, that the need to enhance local democracy and widen participation in local decision-making has

been a core principle of government policy and has been expressed explicitly in *Putting People First – An Action Programme for Effective Local Government.*

While the law makes a precise division of reserved and executive functions so that responsibility can be clearly defined, it is not the objective of this system that elected members and the chief executive act without reference to each other. Both reserved and executive functions are those of the local authority. The fact that the executive functions are undertaken by the chief executive was intended to provide the elected council with an experienced, full-time administrator to ensure the prompt and efficient operation of day-to-day business, and so avoid making undue demands on the time of the elected members.

5.1 THE CHIEF EXECUTIVE

5.1.1 Background and Development of the Management System

Scholars of political science in Ireland such as Basil Chubb have suggested that the local government management system can be regarded as Ireland's major invention in the field of government. The management system in Irish local government drew on the US council-manager model for its basic structure. Prior to the introduction of the management system in 1929-1942, the elected council held both legislative and executive powers, including the recruitment of staff. The introduction of the management system aimed to address the political favouritism, cronyism and, on occasion, sectarianism that characterised recruitment and appointments within local government from the early 1920s. County management was extended to the country generally by the County Management Act, 1940. In the early years there were inevitable tensions between the new managers and the elected representatives, who previously had made various executive decisions. Responsibility for the running of the organisation would be divided between the members, as determinators of policy, and the manager, as the executor of the various policy decisions – controlling and applying resources to achieve established objectives.

The functions of the members became known as *reserved functions*. Decisions in relation to these matters were reserved to the members acting at duly constituted meetings. Various Acts and Statutory Instruments outline what these reserved functions are. Every function of a local authority that is not so identified in law as a reserved function is known as an *executive function* that comes within the remit of the chief executive (before 2014 chief executives were known as county managers or city managers).

It is easy to understand how full-time officials such as chief executives and staff could, in many instances, be perceived as initiators of policy by members of Council and also by the public generally. Local government is big business and requires considerable resources, competences and efforts to ensure that the vast array of works and services are provided in a satisfactory manner. Given that the members of local authorities are primarily part-time and may not be re-elected, it is understandable that, over the years, policy issues have in general been initiated, researched, developed and implemented by management. This has given rise to a perception that the role of members has diminished and is now significantly different from that originally envisaged. This is not intended to be a negative observation

on the local government system. Rather the overall system of government, its processes and objectives have become more complex in response to a changing society. The Irish electorate is now better educated and more sophisticated than previous generations, with different needs to be met and new demands emerging all the time. Local government is the closest arm of government to citizens and has an essential role in delivering critical services to citizens. The challenge for local government is not just simply to respond to emerging issues but to lead change.

You should again bear in mind that the legal position has always been that the members are responsible for determining policy while the chief executive and the staff are responsible for implementation. This position has been strengthened by the Strategic Policy Committees (SPCs) where elected members and sectoral representatives focus on specific policy areas. Overall policy co-ordination is through the Corporate Policy Group (CPG) comprising the chairpersons of the various policy committees, representatives of Municipal Districts, together with the Mayor/Cathaoirleach of the County/City Council and the chief executive.

5.1.2 The Appointment of the Chief Executive

Chief executives are appointed on a contract basis generally for a seven-year term, which may be extended for a further three years. Chief executives are appointed following a recommendation from the Public Appointments Service (PAS). The recommendation is forwarded to the relevant local authority and the local authority members acting collectively make or do not make the appointment.

Under the Local Government Reform Act 2014, having received the recommendation from the Public Appointments Service, the elected council can decide—

(a) To appoint the recommended person as chief executive.

(b) Not to appoint the recommended person as chief executive, or

(c) To seek additional information from the Public Appointments Service

5.1.3 Delegation of Functions

The chief executive may delegate the carrying out of specific functions to directors of service and other officers. The official to whom the function is delegated is responsible for ensuring that the function is carried out effectively as an approved officer. All chief executives delegate some of their powers but retain the ultimate responsibility for ensuring the efficient and effective overall operation of the local authority. The chief executive can delegate authority but cannot delegate responsibility.

5.1.4 The Role and Responsibilities of the Chief Executive

The role of the chief executive is to ensure that resources in terms of personnel, finance, technology and information generally are deployed to implement government and council

policies. Part of the management role entails regular monitoring and review to ensure that the works and services undertaken are being performed efficiently, and also to ensure that the necessary staff are recruited and assigned to deliver local government services.

In reality, the local government system now operates on the basis of a partnership between the elected representatives, the chief executive, and the staff. Ultimately that partnership also includes the citizens being served. In most instances the chief executive will consult with the members prior to carrying into effect important executive functions or particular works, while the members in turn receive the chief executive's advice and assistance in relation to the exercise of their reserved functions.

Paramount among the chief executive's duties is to maximise social, economic and physical development to the benefit of communities and citizens. This involves identifying, nurturing and maximising the competitive advantages of the area. The chief executive has responsibility for the day-to-day management of the authority, including staffing matters, and the discharge of executive functions.

According to recent recruitment processes for the position which have described the role, particular requirements of the chief executive include:

- providing leadership and promoting a collaborative approach on the part of staff, elected members and other relevant parties
- developing the strategic and operational framework for the local authority, including workforce planning, for the formulation and implementation of policy and delivery of services in an efficient manner
- ensuring the financial sustainability of the local authority through effective financial management
- promoting and leading economic development
- providing leadership in the context of inter-agency co-operation
- promoting and leading new local service delivery models (e.g. MyPay, HAP Shared Service Centre), supporting economic development and enterprise support, through the Local Enterprise Offices, and strengthening community development programmes under the Local Community Development Committee.

The chief executive has a key responsibility to plan and manage Council activities and has to judge the likely impact of internal and external changes on parts or all of Council services. The chief executive must liaise and network with a range of bodies, institutions and representative groups that influence or impact on the work of local authorities, including both governmental and non-governmental organisations. The chief executive is expected to manage the work of the local authority within this external environment while also improving standards of service, managing capital investment, and maintaining the confidence of the public, elected members and staff. The chief executive therefore plays a central in advancing the physical, economic, social and cultural life of the local authority area.

5.1.5 Legislative Provisions

The principal responsibilities of the chief executive, as defined by law, are to:

- give the Council all the information in his/her possession or procurement in relation to any business or transaction of the Council
- carry into effect all lawful directions of the elected council in relation to the exercise and performance of a reserved function
- prepare the Corporate Plan for the local authority in consultation with the Corporate Policy Group.
- inform the council before any capital works are undertaken or before committing the local authority to expenditure on proposed works
- prepare and submit to the Council plans and specifications and an estimate for any works to be undertaken.

Members can direct that works shall not proceed and the chief executive shall comply. However, the chief executive can deal immediately with any situation which he/she considers is an emergency situation calling for immediate action. The chief executive must carry out executive functions by way of a written order signed and dated by him.

There is a power available to members, where they can, **direct** the chief executive in the exercise of a specific executive function: this is known as a Section 140 motion and is provided for under the Local Government Act 2001 (as amended). The extent to which this power has been used over the years has varied greatly. In many instances it related primarily to planning issues, while in a number of counties it has rarely, if ever, been used. To an increasing extent, given the partnership approach referred to above, the number of Section 140 motions has been falling considerably over the years. The Local Government Reform Act 2014 prohibits the use of Section 140 in respect of an executive decision required under the Planning Acts.

A Council may suspend or remove from employment the chief executive for stated misbehaviour. The Local Government Act sets out conditions which must be complied with in the event of such a resolution.

5.1.6 Job Requirements and Competencies

To carry out their role and wide-ranging functions/duties effectively, chief executives must drive performance. Competencies for a chief executive include constructive thinking and adaptive leadership, planning and organisation of resources, interpersonal skills, leadership skills, strategic thinking, and analytical thinking.

Again, drawing on recent recruitment campaigns for the position, the chief executive is typically expected to be able to:

- identify, drive and lead important issues
- network and maintain effect relationships

- identify a shared long-term vision that promotes the physical, social, cultural and economic environment of the local authority area
- translate this vision into a strategy to achieve key organisational goals
- communicate clearly and with conviction, while listening to others and clarifying information as required
- work effectively with key stakeholders, and in particular with elected members of the council and local authority staff
- assess the deployment of resources (including financial resources)
- promote and support continuous improvement in local authority services and performance, while adjusting to a changing environment
- evaluate risks and make difficult decisions in an open and fair way
- encourage innovation
- monitor national and international trends and events that may impact on the local authority area
- manage and motivate a multidisciplinary team of staff.

5.1.7 Changing Context and Role

Political Context

The political dimension of local government is very important. The role of the elected members must be properly recognised and valued as a key component of the democratic structures of the state. This is critical to the continuing success of the overall role of local government within the communities being served. Any aspects of local government reform programmes that enhance the role of elected members must be seen in the light of strengthening democracy.

The renewal programme introduced in recent years is one in which the chief executive and staff are delivering and seen to be delivering. SPCs are embedded in the system and functioning, and the CPG is consulted in the preparation of the Corporate Plan and draft Budget. The chief executive plays an essential role in facilitating the CPG as well as ensuring that the SPCs have available to them the necessary expertise, knowledge and advice to enable them to consider thoroughly the policy options within their remit. The chief executive must deliver and contribute to the renewal of the system. His/her role is of increasing significance from a strategic and policy-oriented point of view.

The chief executive must reflect:

- a positive developmental view of local government that is modernising
- the interactive nature of government
- the extent to which participation with people and the citizens at large can take place
- the importance of access and equal opportunity for those within our communities at risk from social exclusion.

Citizen Participation

Particular reference must be made to the increasing community involvement of citizens. This involvement is at the heart of local government. Many people now wish to become more directly involved in matters affecting or impacting on their lives. There can often be a conflict of views between the common good or general community interest on the one hand and the interests of individual communities on the other. These matters can be difficult to reconcile, and the local authority is very often the arbiter and policy-maker directly involved in the issues concerned. In addition, there are many social problems in our communities that urgently need to be addressed through the provision of housing, recreation and amenity facilities, and measures to achieve social inclusion in order to counter disadvantage. These measures need to be delivered in partnership through community development initiatives involving other stakeholders, including the community and voluntary sector. The Public Participation Network has a critical role in this area.

This area of citizen participation is addressed in more detail in a later Lesson.

Community Advice

The role of the chief executive within the community has evolved very considerably in recent years and such evolution is likely to continue. In many communities the local authority chief executive is looked to for advice, assistance and encouragement across a wide range of activities relating to developmental potential, social inclusion measures, climate change, and physical works. The chief executive is expected to be creative, to take a broad view, and to give an objective and carefully considered opinion. The chief executive is expected to provide guidance to communities, facilitate assistance financial or otherwise, help overcome obstacles and be a catalyst for change.

5.1.8 Support Framework

In carrying out his or her functions the chief executive is assisted by a number of national bodies that were set up specifically for this purpose.

County & City Management Association (CCMA)

The County and City Management Association (CCMA) acts as collective voice representing the interests of the local government management network. The members of the CCMA include each of the chief executives of each local authority area, along with the assistant chief executives of Dublin City Council. The association usually meets once a month. Much of the work of the CCMA is carried out through a series of sub-committees – each involved in a specific aspect of the work of local authorities. CCMA subcommittees have included those dealing with the following areas:

- Corporate
- Housing and Land Use
- Climate Change and Transportation
- Environment and Emergency Planning

- Business, Economic Development and Enterprise
- Community, Culture and Rural Development
- Finance

These subcommittees perform a very important role for the sector working collaboratively with government and its agencies, influencing policy changes and carrying out research. Each Committee, made up of both chief executives and directors of service / heads of finance, liaises with senior management of the Department of the Housing and other relevant Departments and organisations. The CCMA can also nominate representatives onto external committees, expert groups and other organisations where it is invited to do so.

Local Government Management Agency (LGMA)

The Local Government Management Agency (LGMA) is a state agency established by statute in 2012 to provide a range of services to the Local Government Sector. The Agency was created through the merger of two pre-existing bodies, which were known as the Local Government Management Services Board (LGMSB) and the Local Government Computer Services Board (LGCSB). The LGMA provides services such as ICT infrastructure and support services, industrial relations, human resources, and communications.

The LGMA also provides a range of services to the County & City Management Association (CCMA), including:

- provision of support to the CCMA subcommittees
- provision of analysis and research on aspects of local government
- representing the views of the local authority system externally to the media and to other interested parties
- providing information on the work of local authorities – through reports, factsheets, press releases

The Institute of Public Administration (IPA)

The IPA was established in 1957 by a group of public servants with the aim of promoting the study and improvement of the standard of public administration and provides a range of education and training services to public sector bodies, including local government. The Institute will need no introduction to you, and many local authorities make use of the various services provided.

5.2 THE ELECTED MEMBERS

5.2.1 Introduction

The powers of local authority members (often referred to as local Councillors) derive primarily from their ***reserved functions*** which are performed at both Council and Municipal District level. In particular, students must bear in mind that members have been given

powers to represent the interests of the local community and to promote generally the interests of the local community. They have been given specific policy roles and adopt the major guiding policy documents which dictate the overall direction and functioning of the local authority. The various reserved functions are set out in Schedule 3 of the Local Government Reform Act 2014.

5.2.2 Membership of Local Authorities

The number of elected members of the council of each local authority is fixed by law under the Local Government Reform Act 2014. The Act also makes provision for the State to be divided into local government areas known as (a) counties, (b) cities (Cork, Dublin and Galway, and (c) cities and counties (Limerick and Waterford). Section 19 of the 2014 Act provides for the establishment of the Municipal District structure.

The dual mandate was abolished from the 2004 elections onwards, so members of the Dáil and Seanad cannot be members of local authorities. The higher grades of local authority staff and certain other categories of public employees, as well as members of the Defence Forces, are already excluded from membership.

For further details on the election of local council members, see the later Lesson dealing with local elections.

5.2.3 The Policy Role of the Elected Member

While responsibility for performance of local authority functions is shared between the elected members and the chief executive, the elected local authority members occupy the pre-eminent position of authority and status in the local government system. This derives from the following:

1. The policy framework within which the chief executive exercises executive functions is determined by the elected members. This process of policy-formulation is conducted in a structured format through the Strategic Policy Committees and Corporate Policy Group arrangements as set out previously.
2. Most of the major decisions of the local authority are reserved as the exclusive prerogative of the elected members, including control over the financial affairs of the authority. This is manifest through the budget process and Annual Financial Statement after the close of the year.
3. In addition to their reserved functions, the elected members enjoy various powers that enable them to oversee and direct the activities of the local authority generally. The 2014 Reform Act introduced a structured reporting relationship between the chief executive and the elected members. This is the Chief Executive's monthly progress report to the council aimed at strengthening governance.
4. The fact that the members are directly elected means that they have a mandate from the people, and that they have an important civic status in relation to the area which they represent. They can initiate action to promote the community interest and are ideally placed to provide civic leadership.

5. Students should bear in mind that the elected members are frequently the first point of contact for citizens with the council. Members usually have detailed local knowledge on issues impacting their communities which can be invaluable.
6. Most councillors are members of political parties or groupings and can be an important conduit of information through the political processes of democracy.

The Local Government Reform Act 2014, Section 47, states clearly that the duty of the chief executive in relation to the elected council is to carry into effect the decisions of the council and to advise and assist the Council in their role.

5.2.4 The Representational Role of the Elected Member

It is implicit in their elected status that local authority members – the Councillors – have the function of representing the people of their area. This role was expanded through the LCDC, which, with the local authority, prepares the local economic and community plan.

Councillors act as watchdogs on how decisions affecting the local electorate are made. They voice their opinion and have a very close local knowledge of issues before the chief executive makes decisions. They act as a sort of local ombudsman, ensuring that fairness and impartiality pervade the decision-making process and that policies and rules are applied consistently. They can go further and make representations on behalf of clients, seeking preferential treatment in certain circumstances.

Elected members are also appointed to other public bodies, including Education and Training Boards, Regional Assemblies, and Regional Health Fora. They can also represent the interests of the local electorate on local bodies.

5.2.5 Oversight and Direction

The elected members have various powers in relation to the functions of the chief executive. This enables the members to play a significant part in overseeing and directing the affairs of the authority generally.

The elected members have the power to:

- Require the chief executive to attend a meeting of a local authority or a committee of a local authority.
- Obtain information from the chief executive on any business or transaction of the authority, and to inspect the chief executive's Orders
- Obtain a monthly report from the chief executive, a Management Report, on the performance of executive functions, including implementation of policy and the provision of services.
- Require the chief executive to inform the members before performing any specified executive function (other than in respect of staff), in a particular instance or generally.
- Require the chief executive to submit plans, specifications and cost-estimates of particular works.

- Prohibit the undertaking of new works
- Direct that a second legal opinion be obtained.
- Request a report on actions taken or planned to be taken to carry out the directions of the elected members. Following consideration of the report, the elected members may adopt a statement that the actions are not sufficient, to which the chief executive must respond within 14 days.
- Require that a particular act, matter or thing be done by the chief executive (Section 140).

All of the above provisions were introduced with the intention of strengthening the governance of the local authority under the Local Government Reform Act, 2014. They address the perceived weakness of the representative side of the council vis-à-vis the executive side.

5.2.6 Reserved Functions

Examples of principal reserved functions include:

- Adoption of the Corporate Plan at the start of the term of the new council – the Corporate Plan sets the overall strategic direction of the council, its high level objectives and goals.
- Disposal of land.
- Making a development plan under the Planning Acts and any variations to it.
- Adopting the annual budget, variations in the annual rate of valuation and variations in the level of Local Property Tax.
- Adopting a scheme of letting priorities for Council housing.
- Making, amending or revoking bye-laws (e.g. parking, control of horses, etc.).
- Nominating persons to act on committees or on other public bodies.
- Approving the Annual Financial Statement and any areas of over-expenditure.
- Adopting the annual Schedule of Municipal District Works.

The following more detailed list of reserved functions set out for each programme group may be helpful in allowing you to get an overview of the policy role performed by the elected council.

Housing and Building

- Making or amending a scheme of letting priorities.
- Adoption of a Traveller Accommodation Programme.
- Making a scheme of priorities for Affordable Housing.

Road Transportation and Safety

- Taking roads in charge.

- Extinguishing a public right of way over a road no longer required for public use.

Development Incentives and Controls

- Making or varying a Development Plan.
- Requiring the granting of a permission which would contravene materially the Development Plan or any Special Amenity Area Order.
- Revoking or modifying a permission to develop land.
- Making a Planning Contribution Scheme (imposing development levies).

Environmental Protection

- Making of bye-laws relating to the control of dogs and control of horses.
- Making a Litter Management Plan.

Recreation and Amenity

- Contributing to swimming facilities, arts facilities, museums.
- Civic improvement, provision of amenities, parks, general recreation and leisure activities.

Agriculture, Education, Health and Welfare

- Appointing persons to serve as members of harbour authorities, educational training boards and certain other bodies.

Miscellaneous Services

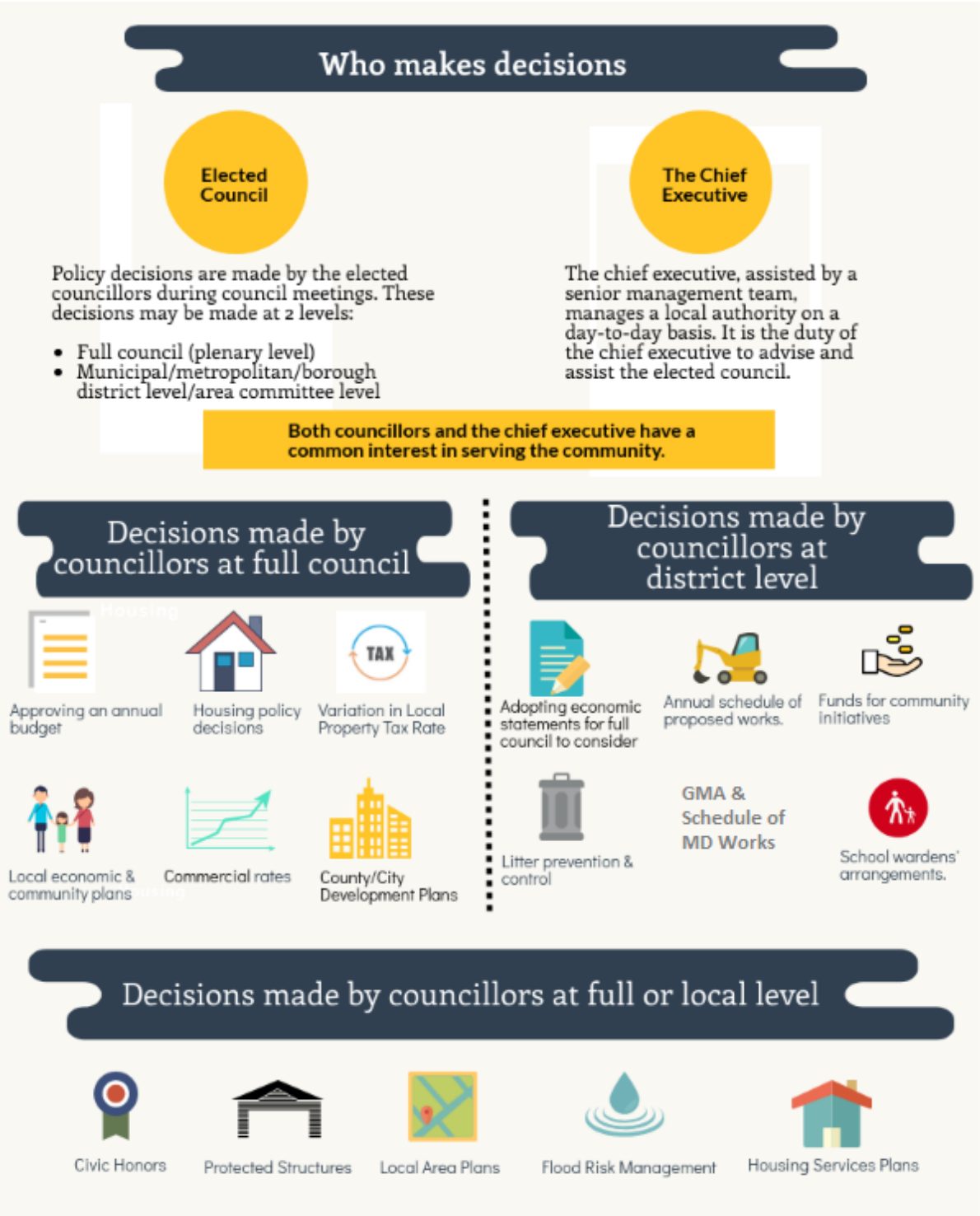
- Authorising the disposal of land owned by a local authority.
- Delegating certain reserved functions to municipal district level.
- Making a polling scheme (i.e. where polling booths are located).
- Nominating a candidate at an election for the office of President of Ireland.

Financial Functions

- Adopting the budget and fixing the annual rate of valuation.
- Variations to Local Property Tax rate.
- Borrowing money.

General

- Making, amending or revoking a bye-law.
- Entering into an agreement with another local authority for the discharge of functions of the other local authority.
- Deciding to confer a civic honour such as the freedom of the city.



5.3 ESTABLISHMENT OF COMMITTEES

5.3.1 Committees of Local Authorities

A local authority may establish committees in relation to any of its functions. This is a reserved function.

5.3.2 Audit Committee

Each local authority must establish an audit committee, as per the Local Government Reform Act 2014.

The functions of an audit committee under this Act (section 59) are:

"(a) to review financial and budgetary reporting practices and procedures…
(b) to foster best practice in the performance of the internal audit function
(c) to review any audited financial statement, auditor's report or auditor's special report in relation to the local authority and assess any actions taken within that authority by its chief executive in response to such a statement or report and to report to that authority on its findings
(d) to assess and promote efficiency and value for money with respect to the local authority's performance of its functions
(e) to review systems that are operated by the local authority for the management of risks".

5.3.3 Area Committees

Some local authorities, particularly those that do not have a municipal district structure, may establish area committees. These can be established to allow elected members to discuss operational issues applying to specific localities within the city or county area. This in particular applies to the following local authorities:

- Cork City Council
- Dublin City Council
- Dun Laoghaire-Rathdown County Council
- Fingal County Council
- Galway City Council
- South Dublin County Council.

5.3.4 Strategic Policy Committees (SPCs) and Corporate Policy Group (CPG)

Strategic Policy Committees (SPCs) are chaired by an elected member but comprise both councillors and sectoral/community interests – the latter must constitute at least one-third of total number of members of each SPC. SPCs advise the council on policy matters and make recommendations to the full council for their decision. They may also advise on service delivery plans, setting out overall policy, objectives and strategies for individual service areas. Guidelines on SPCs suggest that policy recommendations made by SPCs should normally be introduced to the full Council by the SPC chairperson.

In most cases, SPCs tend to reflect the main service areas of local government. Thus while the precise configuration and titles will vary from local authority to local authority, most local authorities will have an SPC with responsibility for Housing, for Planning, for Environmental Service etc. Most local authorities have 4-5 SPCs, although there can be a

larger number in larger local authorities. The work of SPCs is supported by Directors of Services.

The chairpersons of the SPCs work with the Cathaoirleach/Mayor of the local authority and representatives from Municipal Districts on the Corporate Policy Group (CPG). According to central government guidelines on SPCs (2024, p. 6), this group "links the work of the different SPCs, acts as a sort of cabinet and provides a forum where policy positions affecting the whole council can be agreed for submission to the full council". The group also oversees the preparation of the Corporate Plan and is involved in the preparation of the draft budget. The work of the CPG is supported by the Chief Executive.

5.3.5 Joint Policing Committees (JPCs) / Local Community Safety Partnerships

Joint Policing Committees (JPCs) aim to develop greater consultation, co-operation and synergy on policing and crime issues between An Garda Siochána, local authorities and elected local representatives. Joint Policing Committees also facilitate the participation of the community and voluntary sectors in this regard. Under the Policing, Security and Community Safety Act 2024, it is envisaged that JPCs will be replaced by Local Community Safety Partnerships.

5.4 LOCAL AUTHORITIES AND OIREACHTAS MEMBERS

Following on from the ending of the dual mandate from 2004 onwards, regulations issued by central government provide that a local authority must supply or make available, free of charge, to a parliamentary representatives (i.e both TDs and Senators) the following documentation:

a) notice, agenda and minutes of local authority meetings
b) corporate plan
c) annual report
d) local authority budget
e) draft development plan
f) development plan
g) development contribution scheme
h) weekly list of planning applications
i) weekly list of planning decisions
j) draft bye-laws
k) bye-laws.

The Regulations provide that the chief executive for each county/city, together with the Mayor/Cathaoirleach, should arrange a meeting at least annually with local parliamentary representatives as a group to facilitate good communication and update on developments.

5.5 PROCEDURES AT COUNCIL MEETINGS

5.5.1 Overview

This section deals with *plenary* council meetings of the full council (often taking place once a month, or more often where necessary). The plenary council includes all council members, as distinct from municipal districts (or in some local authorities area committees) where Councillors from a particular part of the local authority come together to discuss more localised issues pertaining to the area in question.

Without appropriate rules and regulations, it could be very difficult for elected members to deal with business at meetings of the council, given the very difficult and often sensitive decisions that have to be made and the issues which have to be debated. It is also very important that the public have full access to, and participation in, the decision-making process, and that they have the fullest information available to them in relation to decisions that may affect them. A modern code was established in the Local Government Act, 2001 (as amended) to deal with these matters and the meetings and proceedings of the local council.

Chief executives attend and participate in monthly council meetings (although they cannot vote) and senior staff will also attend local council meetings. In addition, a staff member of the local authority is appointed as 'meetings administrator' to support and advise the Mayor / Cathaoirleach in the running and management of local council meetings.

You should obtain and examine a copy of 'standing orders' in your own local authority. These are the rules that govern the conduct of meetings of the local council and committees, and should be available on the internet. If possible you are also encouraged to attend a meeting of your own local authority and observe how the meeting operates.

Source: TASC Open Government Toolkit

5.5.2 Local Authority Meetings

Types of meetings

In every year a local authority must hold:

a) an annual meeting
b) a budget meeting
c) such other meetings as are necessary for the transaction of its business, i.e. ordinary meetings.

In addition, a local authority may hold such special meetings as may be requisitioned by the members (see below).

Place, date and time of meetings

A local authority must arrange for a suitable venue for the holding of council meetings. The usual venue for holding of meetings is the principal offices of the authority (typically referred to as the 'Council Chamber'). Meetings must be held on such days and at such times fixed by standing orders.

Annual meeting

In every year in which a local election is held, the annual meeting of a local authority shall be held on the fourteenth day after the polling day. In every other year, the local authority

holds an annual meeting in the month of May or June, as the authority decides by resolution or fixes by standing orders.

At an annual meeting in an election year the meetings administrator reads out the names of the persons duly elected as members of the local authority. The election of a Mayor/ Cathaoirleach is to be the first business at an annual meeting. In the case of the annual meeting of a local authority in an election year, the business to be transacted includes the nomination of elected members to other bodies.

Right to form groups for certain appointments

In some instances where 2 or more persons are to be appointed to a particular body, members have the right to form groups to ensure that they have representation on the body. For example, if the local authority had the power to nominate three members to a body and there were nine members at the meeting, then three members could decide to call themselves a group and nominate a person from their group to the body. That person becomes a member of the body without a vote being taken. The remaining two seats on the body are filled from the remaining six members, and those that formed a group take no more part in the process. This mechanism was introduced by the Local Government (Reorganisation) Act, 1985 and was restated in the 2001 Act. This mechanism is designed to protect the representativeness and proportionality in the elected body. It stops a potential dominance by majority voting, as had obtained prior to this arrangement. This *'group procedure'* does not apply as regards the appointment of persons who are not members of a local authority.

Budget meeting

A local authority must hold its budget meeting within the period prescribed by regulations made by the Minister. Members must be given seven clear days' notice of the meeting and public notice must also be advertised. The chief executive is obliged to attend the budget meeting. At the meeting members discuss and adopt the estimates of income and expenditure of the local authority for the coming year and set the level of Annual Rate of Valuation (ARV) (see Lesson on Finance for more information).

Special meetings

A request for a special meeting of a local authority to be convened may be made:

a) by the Mayor/ Cathaoirleach
b) if the office of Mayor/ Cathaoirleach is vacant, or the Mayor/ Cathaoirleach is unable to act, by the Leas-Chathaoirleach/ Deputy Mayor, or
c) by the Mayor/ Cathaoirleach on foot of a request presented to him or her by any 5 members.

Where the Mayor/ Cathaoirleach refuses or neglects to act on foot of a request within 7 days of it being presented to him or her, the members making the request may convene the meeting.

A request for a special meeting to be held must be made in writing and be delivered by the Mayor/ Cathaoirleach, the Leas Chathaoirleach or by the members making the request to the meetings administrator. A request must be signed by the person or persons making it and must:

(a) contain as an agenda a statement of the business which it is proposed to transact at the meeting, and
(b) specify a day, (other than an excluded day), which is not less than 3 clear days after the day on which it is received by the meetings administrator, for the holding of the meeting.

On receipt of such a request, the meetings administrator must issue a notification and give public notice for the special meeting.

5.5.3 Agenda and Public Notice

Notification of meeting and agenda

A notification to attend a meeting must:

(a) be sent or delivered to each member of the local authority
(b) specify the place, date and time of the meeting
(c) give not less than 3 clear days' notice of the meeting.

A notification shall include an agenda for the meeting. The Order of Business is prescribed by standing orders:

- Section 140 Motions
- Confirmation of minutes
- Business prescribed by statute or standing orders for transaction at the meeting
- Business and reports submitted by the chief executive
- Correspondence
- Questions
- Notices of motion

In the case of a special meeting, a copy of the requisition must be sent with the notification. The meetings administrator must, where practicable, advise the Mayor/Cathaoirleach as regards the business of a meeting.

Public notice of meetings

Notice of the place, date, and time of a meeting other than a budget meeting must be displayed not less than 3 clear days before the day of the meeting in or at the principal offices of the local authority in a position convenient for public inspection during normal office hours.

5.5.4 Business of Meetings

Strictly speaking, no business should be transacted at a meeting other than that specified in the agenda except as specified in Standing Orders.

Chairing of meetings

The Cathaoirleach/ Mayor, by law, chairs the meeting, or in his/her absence the Leas-Chathaoirleach/ Deputy Mayor. In any other case, the meeting proceeds to the election of one of the members present to chair the meeting. It is the duty of a Mayor/ Cathaoirleach or deputy to take the chair and to proceed with the business of the meeting.

Specific arrangements apply in Limerick following the introduction of a Directly-Elected Executive Mayor from 2024 onwards, where a Príomh Chomhairleoir is elected by the council to chair council meetings.

Quorum

The quorum for a meeting of a local authority is *one-fourth* of the total number of members of the local authority plus one or, where one-fourth of such total number is not a whole number, the quorum is the next highest whole number plus one.

Doing of acts and determination of questions

Each elected member present at a meeting has a vote unless specifically excluded. All acts of a local authority that are reserved functions or questions arising before a meeting are determined:

- by a majority of the votes of the members voting, or
- where there is an equality of votes, by a second or casting vote of the person chairing the meeting.

A local authority may set out in standing orders the procedures and methods of voting, including when a roll call vote is to be taken.

Notice of Motion

A notice of motion is essentially a proposal placed before a meeting by a councillor or group of councillors requesting or directing a certain course of action by the local authority. Motions will be moved by the proposer and providing there is a seconder then proceed to vote by the majority of members present.

Disorderly conduct

The Local Government Act 2001 provides for dealing with what it calls disorderly conduct at council meetings. If in the opinion of the chairperson, "any member has been or is disorderly by persistently disregarding the ruling of the chair, or by behaving irregularly,

improperly or offensively, or by otherwise obstructing the business of the meeting, and the chair has conveyed his or her opinion to the members present by naming the member concerned, then the chair or any member may move '*that the member named leave the meeting*' and the motion, if seconded, shall be put and determined without discussion. Where a local authority decides … that a member leave a meeting, that member must immediately leave the meeting and will not be entitled to speak or to take any further part in that meeting on that day. Where in the opinion of the chair there is general disorder which impedes the orderly transaction of business, or where a member against whom it was resolved that he or she leave the meeting refuses to do so, the chair may adjourn the meeting for such period as he or she considers necessary in the interests of order" (Schedule 10 of Local Government Act 2001). Adjournments are sometimes called to allow members confer on issues where it is difficult to agree. Members usually try to secure majority agreement of a meeting.

Deputations

Reception of deputations at council meetings are normally covered by the individual councils standing orders. Some local authorities now meet deputations at municipal district meetings.

5.5.5 Minutes

Minutes of the proceedings of a meeting must be drawn up by the meetings administrator. According to the Local Government Act 2001 (Schedule 10), the minutes must include:

"(a) the date, time and place of the meeting
(b) the names of the members present
(c) a list of the senior employees of the local authority present
(d) reference to any report submitted to the members at the meeting
(e) where there is a roll call vote, the number and names of members voting for and against the motion and of those abstaining
(f) particulars of all resolutions passed
(g) such other matters considered appropriate."

Minutes are a written record of decisions taken at the meeting. Speeches or arguments should generally not be included. A copy of the minutes of a meeting is sent or given by the meetings administrator to each member of the local authority. Minutes of a meeting must be submitted for confirmation as an accurate record at the next following ordinary meeting. Where votes are called, members voting in favour or against the item are recorded. A copy of the minutes must be provided to any person applying for them.

Each local authority is responsible for the maintenance of a record of attendance at its meetings. Members representational payment requires their attendance at a minimum number of the scheduled meetings.

5.5.6 Standing Orders

A local authority must have 'standing orders' for the regulation of its meetings. Standing orders are a set of rules for the proper control and regulation of meetings of the local authority and its committees. The Local Government Act 2001 (Schedule 10) provides that standing orders deal with:

- "the schedule of ordinary meetings
- the commencement, adjournment and termination of meetings
- the chairing of an annual meeting in an election year where the Mayor/Cathaoirleach fails to be elected
- revoking resolutions … (at least one-half of the total number of members must vote in favour)
- dealing with urgent business … (at least one-half of the total number of members must vote in favour)
- procedures and methods of voting and when a roll call vote is to be taken
- the suspension of any provision of standing orders, (at least two-thirds of the members present must vote in favour)".

Standing orders will also set out arrangements regarding regulating the right of members of the public and the media to be present, and rules governing the behaviour of people at meetings, for attendance of delegations and for the removal of members of the public who interrupt the proceedings.

5.5.7 Press and the Public

Members of the public and the media have a right to attend meetings of a local authority. This right to attend meetings is obviously backed up by the rights given under legislation to obtain copies of the agenda and the need to give public notification of meetings, etc. The public have a right to get copies of the minutes after they have been duly adopted at council level. In practice many local authorities have moved to providing copies of minutes and other public information on their official websites. A number of local authorities now provide webcasts of their Council meetings.

The local authority's right to meet "in-committee" for the whole or part of a meeting has been restricted and can only be exercised on a resolution passed by a majority of members. The resolution must state why it is deemed necessary to meet in committee, and the minutes must record the fact.

5.6 CONCLUSION

The important partnership role between the chief executive, staff and members has been emphasised. While disputes and conflict can of course arise from time to time, it will be clear from what has been said in this lesson that unless such a partnership and working relationship exists, it would not be possible for the local authority to function in an efficient and effective manner.

The question of the *delivery of services* at various locations also has to be considered in more detail. Local authorities are required at the start of each council term to prepare corporate plans, and more detailed service delivery plans that identify and agree standards of customer service and suitable indicators of performance that can measure success in achieving the agreed service levels. There is a continued emphasis on quality, value for money, efficiency and effectiveness with the overall outcome of ensuring that the service is as good as possible for the people being served.

The future promises to be challenging and exciting. The role of local government (and with it the role of the elected member and the management system) will continue to evolve. All those within local government have an important role to play. There are many staff at various levels throughout the organisation performing functions of a chief executive nature in terms of assembling and managing resources and setting and achieving objectives. It is important that staff maintain an open creative approach, bring their knowledge and experience to bear in a meaningful way, and always keep in mind the primary focus of the service: to provide a framework within which economic, social, cultural, environmental and community development can be achieved and quality of life enhanced for all citizens.

The local government renewal programme is dictating an increasingly changing and challenging role for councillors – municipal districts, LCDCs, PPNs, etc. all entail closer working relationships, not only with management but also in a more structured way with community and sectoral interests. Tied in with this is their continuing traditional role of acting as public representatives and advocates for their local electorate. Their evolving duties will require honing of skills and a more intense knowledge of key policy areas. In the context of local government reform programmes, there is little doubt that the important local democratic role of the councillor will be enhanced and that the elected representative will play an even more central role in the local government system. The proposed introduction of a directly elected mayor in different areas will also introduce further change and complexity in the years ahead.

KEY CONCEPTS

- Reserved Functions
- Executive Functions
- Chief Executive's Order / Manager's Order
- Management Report
- Public Appointments Service
- Strategic Policy Committees
- Corporate Policy Group
- Municipal Districts
- Area Committees
- Chairperson / Mayor / Cathaoirleach
- Vice-Chairperson / Deputy Mayor / Leas-Chathaoirleach
- Príomh Chomhairleoir
- Representational Role
- Policy Making Role
- Section 140 Motions
- Democratic Deficit
- Standing Orders
- Civic Honours
- Annual, Ordinary, Budget and Special Meetings
- Meetings Administrator
- Group Procedure

STUDENT ACTIVITIES

1. Attend a monthly meeting of your local council. Before attending, obtain a copy of the agenda and standing orders to gain a fuller understanding of proceedings. Note how the issues on the agenda are addressed, the role of the chairperson, and how both elected members and chief executive / other staff contribute to meetings.

2. Consult your local authority's Standing Orders. How does it deal with issues such as disorderly conduct at meetings, or the filling of casual vacancies?

3. Consult the most recent monthly management report of your local authority's chief executive available to you on the performance of executive functions, the implementation of policy and provision of services. Consider the issues included and the extent to which these might be a useful source of information for elected members.

4. Examine the committee system in your area to try to develop a fuller understanding of SPCs, municipal districts / area committees (where applicable) and any other committees in place. Identify the different membership of these structures and the nature of the issues that are discussed.